SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30

1. REQUISITION NUMBER

PAGE 1 OF 28

2. CONTRACT NO.	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			W912HQ25R0004	10-Feb-2025

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No Collect Calls)*	8. OFFER DUE DATE/LOCAL TIME
	DAVID A KAPLAN	703-428-8487	04:30 PM 20 Feb 2025

9. ISSUED BY CODE W912HQ

USACE HUMPHREYS ENGR CTR SPT ACTIVITY
ATTN: CEHEC-CT,
7701 TELEGRAPH ROAD
ALEXANDRIA VA 22315-3860

TEL:
FAX:

10. THIS ACQUISITION IS

[ ] UNRESTRICTED OR [X] SET ASIDE: 100 % FOR:

[ ] SMALL BUSINESS
[ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
[ ] HUBZONE SMALL BUSINESS
[ ] EDWOSB
NAICS: 541511
[ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
[X] 8(A)
SIZE STANDARD: $34,000,000

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED
[ ] SEE SCHEDULE

12. DISCOUNT TERMS
Net 30 Days

[ ] 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION
[ ] RFQ [ ] IFB [X] RFP

15. DELIVER TO CODE W74RDV

CWBI PROGRAM MANAGEMENT OFFICE (PMO)
JUSTIN PUMMELL
INST FOR WATER RESOURCES 7701 TELEGRAPH RD
ALEXANDRIA VA 22315
TEL: 808-234-4633 FAX:

16. ADMINISTERED BY CODE

17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE

TELEPHONE NO.

18a. PAYMENT WILL BE MADE BY CODE

[ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a. UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (For Govt. Use Only)

[ ] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1. 52.212-4. FAR 52.212-3. 52.212-5 ARE ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[X] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

[ ] 29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER *(TYPE OR PRINT)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(TYPE OR PRINT)* TEL: EMAIL:	31c. DATE SIGNED

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS (CONTINUED)					PAGE 2 OF 28
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

Section SF 1449 - CONTINUATION SHEET

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001		1	Job		

CWBI CyberSec RMF Support - Base Year
FFP
The contractor shall provide all labor, supervision, and management necessary to completes Task 5.1 - Task 5.6 in accordance with the attached Performance Work Statement.
FOB: Destination
PSC CD: DA10

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002		1	Job		

Other Direct Costs (ODCs) - Base Year
COST
Contractor shall provide all ODCs necessary to complete tasks 5.1 - 5.6 as detailed in the PWS. All invoices for ODCs shall be accompanied by supporting receipts
FOB: Destination
PSC CD: DA10

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003		1	Job		

Travel Costs - Base Year
COST
In accordance with FAR 31.205-46, travel costs, if applicable, shall be reimbursed at rates not to exceed the maximum locality per diem rates (the combination of lodging, meals and incidentals) in effect at the time of travel, as set forth in the Federal Travel Regulations, Joint Travel Regulation and Standard Regulations, Section 925, as applicable. All invoices for travel shall be accompanied by supporting receipts. No profit or fee is allowed on travel costs.
FOB: Destination
PSC CD: DA10

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1001		1	Job		
OPTION					

CWBI CyberSec RMF Support - Opt Year 1
FFP
The contractor shall provide all labor, supervision, and management necessary to completes Task 5.1 - Task 5.6 in accordance with the attached Performance Work Statement.
FOB: Destination
PSC CD: DA10

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1002		1	Job		
OPTION					

Other Direct Costs (ODCs) - Opt Yr 1
COST
Contractor shall provide all ODCs necessary to complete tasks 5.1 - 5.6 as detailed in the PWS. All invoices for ODCs shall be accompanied by supporting receipts
FOB: Destination
PSC CD: DA10

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1003		1	Job		
OPTION	Travel Costs - Opt Yr 1 COST In accordance with FAR 31.205-46, travel costs, if applicable, shall be reimbursed at rates not to exceed the maximum locality per diem rates (the combination of lodging, meals and incidentals) in effect at the time of travel, as set forth in the Federal Travel Regulations, Joint Travel Regulation and Standard Regulations, Section 925, as applicable. All invoices for travel shall be accompanied by supporting receipts. No profit or fee is allowed on travel costs. FOB: Destination PSC CD: DA10				
				ESTIMATED COST	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2001		1	Job		
OPTION	CWBI CyberSec RMF Support - Opt Year 2 FFP The contractor shall provide all labor, supervision, and management necessary to completes Task 5.1 - Task 5.6 in accordance with the attached Performance Work Statement. FOB: Destination PSC CD: DA10				
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2002		1	Job		
OPTION	Other Direct Costs (ODCs) - Opt Yr 2 COST Contractor shall provide all ODCs necessary to complete tasks 5.1 - 5.6 as detailed in the PWS. All invoices for ODCs shall be accompanied by supporting receipts FOB: Destination PSC CD: DA10				
				ESTIMATED COST	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2003		1	Job		
OPTION	Travel Costs - Opt Yr 2 COST In accordance with FAR 31.205-46, travel costs, if applicable, shall be reimbursed at rates not to exceed the maximum locality per diem rates (the combination of lodging, meals and incidentals) in effect at the time of travel, as set forth in the Federal Travel Regulations, Joint Travel Regulation and Standard Regulations, Section 925, as applicable. All invoices for travel shall be accompanied by supporting receipts. No profit or fee is allowed on travel costs. FOB: Destination PSC CD: DA10				
				ESTIMATED COST	

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Destination	Government	Destination	Government
0002	Destination	Government	Destination	Government
0003	Destination	Government	Destination	Government
1001	Destination	Government	Destination	Government
1002	Destination	Government	Destination	Government
1003	Destination	Government	Destination	Government
2001	Destination	Government	Destination	Government
2002	Destination	Government	Destination	Government
2003	Destination	Government	Destination	Government

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	12 mths. ADC	1	CWBI PROGRAM MANAGEMENT OFFICE (PMO) JUSTIN PUMMELL INST FOR WATER RESOURCES 7701 TELEGRAPH RD ALEXANDRIA VA 22315 808-234-4633 FOB: Destination	W74RDV
0002	12 mths. ADC	1	(SAME AS PREVIOUS LOCATION) FOB: Destination	W74RDV
0003	12 mths. ADC	1	(SAME AS PREVIOUS LOCATION) FOB: Destination	W74RDV
1001	12 mths. AOE	1	(SAME AS PREVIOUS LOCATION) FOB: Destination	W74RDV
1002	12 mths. AOE	1	(SAME AS PREVIOUS LOCATION) FOB: Destination	W74RDV
1003	12 mths. AOE	1	(SAME AS PREVIOUS LOCATION) FOB: Destination	W74RDV
2001	12 mths. AOE	1	(SAME AS PREVIOUS LOCATION) FOB: Destination	W74RDV
2002	12 mths. AOE	1	(SAME AS PREVIOUS LOCATION) FOB: Destination	W74RDV
2003	12 mths. AOE	1	(SAME AS PREVIOUS LOCATION) FOB: Destination	W74RDV

CLAUSES INCORPORATED BY REFERENCE

52.203-3	Gratuities	APR 1984
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	SEP 2024
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-18	Prohibition on Contracting With Entities That Require Certain Internal Confidentiality Agreements or Statements--Representation	JAN 2017
52.204-13	System for Award Management Maintenance	OCT 2018

52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.212-4	Contract Terms and Conditions--Commercial Products and Commercial Services	NOV 2023
52.227-17	Rights In Data-Special Works	DEC 2007
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.246-4	Inspection Of Services--Fixed Price	AUG 1996
52.246-20	Warranty Of Services	MAY 2001
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7008	Compliance With Safeguarding Covered Defense Information Controls	OCT 2016
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting	MAY 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support	JAN 2023
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services	JAN 2023
252.204-7020	NIST SP 800-171 DoD Assessment Requirements	NOV 2023
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.225-7012	Preference For Certain Domestic Commodities	APR 2022
252.225-7048	Export-Controlled Items	JUN 2013
252.227-7015	Technical Data--Commercial Products and Commercial Services	MAR 2023
252.227-7016	Rights in Bid or Proposal Information	JAN 2023
252.227-7037	Validation of Restrictive Markings on Technical Data	JAN 2023
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.232-7010	Levies on Contract Payments	DEC 2006
252.243-7001	Pricing Of Contract Modifications	DEC 1991
252.243-7002	Requests for Equitable Adjustment	DEC 2022

CLAUSES INCORPORATED BY FULL TEXT

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2024)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

XXX (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

___ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

___ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

___ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community--see FAR 3.900(a).

XXX (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (6) [Reserved]

XXX (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

___ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

XXX (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders--Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

___ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

___ (ii) Alternate I (DEC 2023) of 52.204-30.

XXX (12) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (NOV 2021) (31 U.S.C. 6101 note).

XXX (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

____ (14) [Reserved]

____ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

____ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

____ (17) [Reserved]

____ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-6.

____ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-7.

____ (20) 52.219-8, Utilization of Small Business Concerns (FEB 2024) (15 U.S.C. 637(d)(2) and (3)).

____ (21)(i) 52.219-9, Small Business Subcontracting Plan (SEP 2023) (15 U.S.C. 637(d)(4)).

____ (ii) Alternate I (NOV 2016) of 52.219-9.

____ (iii) Alternate II (NOV 2016) of 52.219-9.

____ (iv) Alternate III (JUN 2020) of 52.219-9.

____ (v) Alternate IV (SEP 2023) of 52.219-9.

____ (22) (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

____ (ii) Alternate I (MAR 2020) of 52.219-13.

XXX (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

____ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

____ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

XXX (26) (i) 52.219-28, Post-Award Small Business Program Rerepresentation (FEB 2024) (15 U.S.C. 632(a)(2)).

____ (ii) Alternate I (MAR 2020) of 52.219-28.

____ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

____ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

____ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

____ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 657s).

XXX (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

____ (32) 52.222-19, Child Labor--Cooperation with Authorities and Remedies (FEB 2024) (E.O. 13126).

XXX (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

XXX (34)(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

____ (ii) Alternate I (FEB 1999) of 52.222-26.

XXX (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

____ (ii) Alternate I (JUL 2014) of 52.222-35.

XXX (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

____ (ii) Alternate I (JUL 2014) of 52.222-36.

XXX (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

XXX (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

XXX (39)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

____ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

XXX (40) 52.222-54, Employment Eligibility Verification (MAY 2022). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

____ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

____ (47) (i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

____ (ii) Alternate I (JAN 2017) of 52.224-3.

____ (48) (i) 52.225-1, Buy American--Supplies (OCT 2022)) (41
U.S.C. chapter 83).

____ (ii) Alternate I (OCT 2022) of 52.225-1.

____ (49) (i) 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

____ (ii) Alternate I [Reserved].

____ (iii) Alternate II (DEC 2022) of 52.225-3.

____ (iv) Alternate III (FEB 2024) of 52.225-3.

____ (v) Alternate IV (OCT 2022) of 52.225-3.

____ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

XXX (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

____ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

____ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

____ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

XXX (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).

____ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

____ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C.4505, 10 U.S.C. 3805).

____ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

XXX (59) 52.232-33, Payment by Electronic Funds Transfer--System for Award Management (OCT 2018) (31 U.S.C. 3332).

____ (60) 52.232-34, Payment by Electronic Funds Transfer--Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

____ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

____ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

____ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

____ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

____ (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

____ (ii) Alternate I (APR 2003) of 52.247-64.

____ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

_____ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

_____ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

_____ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67).

_____ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67).

_____ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

_____ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

_____ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (FEB 2024) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018), (41 U.S.C. chapter 67).

(xvi) _____ (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

_____ (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67.)

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67)

(xix) 52.222-54, Employment Eligibility Verification (MAY 2022) (E. O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii) (A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least twenty (20) days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed thirty-six (36) months.

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/

(End of clause)

PROPOSAL INSTRUCTIONS

1. GENERAL INFORMATION:

This is a solicitation for commercial items prepared in accordance with the format in FAR Past 12 Acquisition of Commercial Products, as supplemented with additional information included in this notice and FAR Part 13 Simplified Acquisition Procedures. This announcement constitutes the only solicitation. Offers are being requested This solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2025-03, dated 031 JAN 2025.

2. BACKGROUND:

The USACE Civil Works Business Intellgence (CWBI) seeks services and support to government staff with preparing technical documentation, completing specific tasks, and conducting continuous monitoring associated with maintaining an Authority to Operate (ATO) on the Department of Defense Information Network (DODIN) through compliance with DoD instruction 8510.01 Risk Management Framework (RMF) for DoD Information Technology for software, systems and platform technology managed by the CWBI program.

CWBI is an AIS that provides a central location for management and tracking performance of USACE Civil Works (CW) business line activity through an integrated geospatially enabled decision support system. CWBI provides the umbrella structure, support, and guiding procedures to accomplish the migration of systems, applications, and data into a common CW cloud-smart environment. The CWBI environment is aligned with DoD and Army data strategy to make data visible, accessible, understandable, linked, trusted, interoperable, and secure (VAULTIS). A consolidated approach allows the Civil Works mission to:

- Enhance cybersecurity by placing applications and data in an environment where the Risk Management Framework controls are inherited from the Service Provider and is collective for all applications; and
- Transfer the risk associated with building, owning, and maintaining the physical IT, network, storage, and computing capacity.

CWBI provides support for applications and data sets not otherwise funded with Direct Appropriation. CWBI also enables application rationalization to ensure each cloud-approach is aligned with data strategy, and advances security, mobility, visualization, readiness, and relevance. CWBI program goals include:

- Integrate and advance the delivery of the Civil Works mission.
- Prioritize data and achieve VAULTIS principles.
- Secure Civil Works Data.
- Strengthen the CWBI foundation.

The above program goals are not possible without a solid Risk Management Framework foundation. The objective of this contract is to support the CWBI Program Management Office (PMO) in assuring compliance with DoDI 8510.01, preparing technical documentation and completing specific tasks associated with CWBI's Authority to Operate (ATO), supporting CWBI cloud cybersecurity architecture, and administering change management procedures.

3.0 PROPOSAL SUBMISSION INSTRUCTIONS

FAR 52.212-1 ADDENDUM - INSTRUCTIONS TO OFFERORS – COMMERCIAL ITEMS

To ensure timely and equitable evaluation of proposals, offerors must comply with instructions contained herein. Offers must be complete, detailed and respond directly to the requirements of this solicitation.

3.1 Interested parties capable of providing the requirement must submit a signed and dated offer on company letterhead with unit prices, extended prices, discount terms, tax identification number, CAGE code, and SAM Unique Identifier in response to this solicitation. The requirements of this solicitation, including the Performance Work Statement and terms and conditions, the offeror agrees to all solicitation requirements. Offerors must clearly identify any exception to the solicitation terms and conditions and provide complete accompanying rationale.

3.2 All offer information shall be emailed to Ms. Kieran Jacobson, Contract Specialist at email: Helen.Jacobson@usace.army.mil. Proposals must be signed and dated by an authorized official of the offeror. Electronic submissions of proposals via e-mail are required.

3.3 Proposals must be received by the Government at the time proposals are due. Merely transmitting prior to the time proposals are due can potentially result in a proposal arriving "late" thus ineligible for evaluation

3.4 Offerors must provide price information as subtotal for each PWS Task per each year of the contract and the total price to complete the required services. Price information must include the hourly rate (fully burdened) proposed for each labor category and the quantity of labor hours per each labor category per each PWS task.

3.5 To be eligible to receive an award resulting from this Combined Synopsis Solicitation, Contractors must be registered in the System for Award Management (SAM) database, no exceptions. To register, please visit http://www.sam.gov.

3.6 Proposals must be organized into Volumes as detailed below:

3.6.1 Volume 1 – Factors 1 and 2

Factor 1 – Technical Understanding and Approach: Offerors shall submit a written narrative proposal which describes and demonstrates the offeror's technical understanding and approach to satisfy the full scope of the support needs of IWR as outlined in the PWS. The offeror shall submit documentation detailing the capabilities to be made available via the Offeror's multi-disciplinary staffing plan and their alignment with the Government's expressed needs. Offerors shall include a breakdown of the estimated level of effort (labor hours) per each labor category per each task per each year of the contract.

Factor 2 – Organization, Management, Structure and Capabilites (OMSC) Plan: Offerors shall submit a written narrative in their proposal which describes and demonstrates the offerors Organizational Management, Structure and Key Personnel Availability that will support the requirements in the PWS. Offerors shall provide detailed information as to their approach to effectively staff, manage, and oversee the quality of work performed in fulfillment of needs expressed in the PWS (collectively "management approach"). Offerors shall summarize their staff capabilities in a staff-capabilities matrix that crosswalks capabilities of staff with needs outlined in "Scope" and "Performance Requirements". Offerors shall provide enough information to demonstrate a thorough understanding of time and personnel requirements, information on how the Offeror will meet programmatic deadlines, and information on how the Offeror will maintain the functions outlined in the PWS.

The Offeror shall submit a management plan describing the Offeror's management approach. The management plan must describe the Offeror's staffing structure and include an organizational chart that clearly shows the management team and lines of authority and communication. The Offeror's management plan must demonstrate the Offeror's ability to maintain a low level of performance risk, demonstrate the Offeror's ability to adapt and respond to changes, and detail how the Offeror will provide effective customer service. The management plan must clearly establish a hierarchy, detail the responsibilities for its personnel, and provide a staffing plan that demonstrates its staff is available for, and capable of, fulfilling multiple task order requirements simultaneously, without degradation in the performance level of any of the tasks being performed under the contract and while maintaining the required schedules in the contract.

Offerors shall propose the Key Personnel identified by the Government for this requirement and submit resumes demonstrating the appropriate education, knowledge, and experience. Resumes should include proposed job title, education, certifications held, special qualifications, and experience (listing the job title, specific duties, responsibilities, and the respective dates).

3.6.2 Volume 2 – Factor 3 – Past Performance

3.6.2.1 General. The Offeror that signs the SF1449 shall provide its past performance information regarding recent and relevant efforts and the quality of those efforts to demonstrate accomplishments and capabilities to successfully perform and accomplish the effort required by this RFP.

The USACE Past Performance Questionnaire, included as Attachment 2, is provided for the offeror to submit to the client for each contract the Offeror includes in its proposal for this Factor. Ensure correct phone numbers and e-mail addresses are provided for the client point of contact. Completed PPQs should be submitted with the offeror's proposal. If the offeror is unable to obtain a completed PPQ from a client for a contract(s) before proposal closing date, the offeror should complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective contract(s). The Offeror should follow-up with clients/references to ensure timely submittal of questionnaires.

If the client requests, questionnaires may be submitted directly to the Government's point of contact, Ms. Kieran Jacobson at email: Helen.Jacobson@usace.army.mil with a copy furnished to the Contracting Officer, Mr. David A. Kaplan at email: David.A.Kaplan@usace.army.mil before the due date and time for proposal submission. Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other Request for Proposals (RFP). However, this does not preclude the Government from considering previously submitted PPQ information in the past performance evaluation.

In addition to the above, the Government may review any other sources of information for evaluating past performance. Other sources may include, but are not limited to past performance information retrieved through Contractor Performance Assessment Reporting System (CPARS), using all CAGE codes/DUNS numbers/SAM UEIs of team members (partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified in the offeror's proposal, inquiries of owner representative(s), Federal Awardees Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the Offeror.

While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete PPI rests with the offeror .

There are three aspects to the past performance information to be submitted: (a) Recency, (b) Relevancy, (c) Quality. These three aspects to past performance will be used to determine the Offeror's rating for this Factor, which is known as a Confidence Assessment.

3.6.2.2: Recency. Past performance is considered "Recent" if the performance occurred within the last three (3) years.

3.6.2.3: Relevancy. The Offeror shall submit a minimum of three (3) and no more than five (5) examples of its most "recent" and "relevant" project efforts performed to demonstrate the Offeror's accomplishments on contracts similar to the effort required in this solicitation. If Offeror has major subcontractors (defined as performing more than 15% of the total effort), past performance must be submitted for each major subcontractor. For each "recent" and "relevant" project example, the Offeror shall furnish the information specified below. If the Offeror is submitting "task order type projects", each single task order project shall be submitted on a separate project data sheet. Do not combine tasks orders and present them as one entire project.

As a minimum, provide the following information:
(1) Company Name
(2) Name of Project
(3) Location of Project
(4) Owner's Name and Owner's Point of Contact, (telephone, e-mail)
(5) General Scope of Project/Contract Work as it relates to the PWS of this solicitation, including project size, complexity, and any distinctive and/or unique features of the project)
(6) Offeror's Role (Prime, Subcontractor, Joint Venture Partner, etc.) and the type of work your company self-performed
(7) Contract Type (e.g., performance based, Firm-Fixed-Price, etc.)
(8) Contract Award Date (Month/Year); Completion Date of the Base Year: (Month/Year); Completion of option years (Month/Year)
(9) If this contract is being performed under an option year the completion date of the current option being performed: (Provide Month/Year)
(10) Contract Dollar Value - Base Year Price and Total Price (Base Year and all Options)
(11) Type and Extent of Work Subcontracted
(12) The Approach to the Operational Services
(13) How the Project was Managed (e.g., oversight, schedule, quality, property management, safety, etc.)
(14) Termination or Liquidated Damages Information (comments regarding any known performance deemed unacceptable to the customer or not in accordance with the contract terms and conditions)
(15) Contract Number (if providing information from a US Government contract)

The references should be provided in descended order, with the most relevant contracts appearing first.

3.6.2.4. Quality. The Offeror shall submit evidence of the quality of its past performance on the projects submitted. The Offeror shall provide a completed Contractor performance evaluation, whether annual or final, found in the Contractor Performance Assessment Rating System at website: www.cpars.gov. If a completed Contractor performance evaluation does not exist in CPARS (example, non-U.S. Government projects), the Offeror shall provide completed Past Performance Questionnaire (PPQ) (see Attachment 2). If, at time of evaluation, a completed Contractor performance evaluation exists in CPARS that conflicts with a submitted PPQ, the

completed contractor performance evaluation will govern.
Completed CPARS or PPQs that were submitted in response to previous solicitations may be used in this source selection. However, Offerors shall not incorporate any CPARS or PPQs by merely referencing other proposals. A copy of the CPARS or PPQ must accompany the company effort submitted under Past Performance. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate, and complete past performance information rests with the Offeror.

If an Offeror has been required to take corrective action for any substandard performance, other performance problems such as cost overruns, extended performance periods, numerous warranty calls, etc., the Offeror should explain the circumstances and the corrective actions taken.
It is the Offeror's responsibility to ensure that the project owner submits the PPQ and/or CPARS before the proposal due date. PPQ's and/or CPARS received after the proposal receipt date will not be considered timely and will not be included in the evaluation of the Offeror's proposal. Offeror shall submit PPQs and/or CPARS with their proposals.

Any past performance surveys/assessment/evaluation forms, other than CPARS or the PPQ form provided as Attachment 2, are unacceptable submissions by the Offeror to evidence the quality of its past performance and will not be considered or evaluated.

3.6.2.5 Joint Venture Submission Requirements. Offerors submitting proposals as a Joint Venture (JV) shall obtain a SAM Unique ID number and be registered in the System for Award Management (SAM) as the offering Joint Venture. The Offeror must provide up to five (5) "recent", "relevant" projects either performed by the JV or by any partners in the joint venture that reflect the JV's ability to perform the work as required in the PWS. The partners to the joint venture in the aggregate must demonstrate the past performance necessary to perform the contract. The total submitted by the J/V will not exceed 5.

3.6.2.6 Verification of Past Performance. The Government reserves the right to verify the past performance record of cited projects (or other recent projects not submitted) by reviewing the Contractor Performance Assessment Rating System (CPARS), or other Government appraisal systems, or to interview owners or references. The Government may check any or all cited references to verify supplied information. An Offeror will be afforded the opportunity to reply to or explain adverse performance information which the Offeror has not previously had an opportunity to address.

3.6.3 Volume 3 – Factor 4 – Price

Offerors shall propose firm fixed prices per each task in the PWS per each year of the contract. Price proposals must include a supplement which lists the fully burdened labor rates per each labor category per each year of the contract. The binding price per each task of PWS per each contract year must be signed as a PDF.

3.6.4 Volume 4 – Administrative

3.7 Formatting. Each volume shall be clearly identified and shall begin at the top of a page. All

pages of each volume shall be appropriately numbered and identified by the complete company name, date and RFP number in the header and/or footer. A Table of Contents should be created using the Table of Content feature in MS Word. Documents shall use the following page setup parameters:

Margins – Top, Bottom, Left, Right – 1”
Gutter – 0”
From Edge – Header, Footer 0.5”
Page Size, Width – 8.5”
Page Size, Height – 11”
Font Size – 12-point except for tables and illustrations
Font Style – a font with Serifs is preferred for body text (Times New Roman is preferred) and a font without Serifs is preferred for headings/headers (Arial is preferred)

- Spreadsheets, table, charts, etc. may be 11” x 17”, but will count as two pages. Tables and illustrations may be landscape and may use a reduced font size of no less than 10-point.
- No price information may be included in Volumes 1, 2, or 4.

3.7.1 The following additional instructions apply:

File Packaging. Files shall be in read-only format, using PDF files. All price breakdown information to aide in the cost/price evaluation shall be submitted in Microsoft Office Excel Read/Write format and viewable in Microsoft Excel (Microsoft Office 365).
The file name must contain the solicitation number W912HQ25R0004. File naming conventions are as follows: C03.0x (name of offeror) Volume (number) – W912HQ25R0004 dated yyyy.mmm.dd; i.e. C03.0x Kaplan Inc. Volume 1 – W912HQ25R0004 dated 2024.10.31

3.7.2 Proposals must be prepared clearly and concisely to demonstrate that the Offeror has a complete understanding of the requirements. Offerors shall prepare proposals on the presumption that the Government has no previous knowledge of the Offeror’s capabilities. Proposals will be evaluated only on the information specifically presented in respective submittals, with the exception of the Past Performance evaluations. When applicable, the Offeror shall cross reference to the solicitation by annotating the solicitation reference in parenthesis, (e.g., Sec C, para 4.0). Proposals must set forth full, accurate, and complete information as required by this solicitation (including attachments). The penalty for making a false statement in proposals are prescribed in 18 U.S.C. §1001.

Offerors should submit their best proposal initially as the Government intends to make awards without discussions in accordance with FAR 52.215-1 (except clarifications, as described in FAR 15.306(a)). The Government reserves the right to conduct discussions, if deemed necessary. Each file of the proposal shall consist of a Table of Contents, Summary Section, and the Narrative discussion. Title pages and table of contents are not included in page counts. The Summary Section shall contain a brief abstract of the file. Proprietary information shall be clearly marked.

3.7.3 Page Limits. The following page limits apply:

Volume I must not exceed 40 pages.
Volume II has no page limit
Volume III has no page limit
Volume IV has no page limit

4.0 BASIS FOR AWARD

All proposals will be evaluated based on the factors described below: Technical, Organizational Management, Structure and Capabilities (OMSC), Past Performance and Price.

Factor 1: Technical Understanding and Approach
Each proposal will be evaluated based upon the offeror's understanding of the Performance Work Statement (PWS) and approach to performing the tasks as specified in the PWS, including on how well the offeror understands the requirement in the PWS and how effective the offeror's approach is in accomplishing the tasks specified in the PWS. Additionally, the proposal will be evaluated based on the offeror's key personnel assigned to accomplish the tasks outlined in the PWS. Resumes for each key personnel should be submitted and demonstrate appropriate education (including certifications) and experience.

Factor 2: Organization, Management, Structure and Capabilities (OMSC) Plan
Each Proposal will be evaluated on the quality and effectiveness of the offeror's proposed OMSC plan at accomplishing the tasks in the PWS. At a minimum, the plan should include:

- An introduction that describes overall how the OMSC of your firm can support the objectives of this contract.
- A section describing the management structure for this task order, including resumes of key personnel, and how it will be managed.
- A section that describes the application of key personnel, including their roles and responsibilities. This section must also describe how the technical and administrative support staff is positioned to support the requirements of this task order and explain the adequacy of the proposed labor mix.
- A section that specifically describes how the proposed labor mix has enough experience to adequately address the topics of the PWS.

Higher technical ratings will be given for the greater demonstrated quality and effectiveness of the OMSC Plan in accomplishing the tasks in the PWS.

Factor 3: Past Performance
The Offeror's past performance will be evaluated by the Government to assessment the Offeror's probability of successfully performing the requirements in the PWS. The Government will assess a maximum of five (5) prior or current contracts performed within the past 3 years.

Factor 4: Price
Prices will be evaluated to determine reasonableness. If there is a conflict in pricing between the PDF Price Volume and Excel attachment to the PDF Price Volume, the pricing in the Excel file

shall be considered the proposed price. You may be expected to propose ODCs and travel under this contract (see the PWS for additional information). You must provide an explanation for the type and amount of ODCs and travel proposed.

Compliance: The price proposal submitted by the Offeror will be evaluated for compliance based upon the submission requirements contained in the Section L.

Unbalanced Pricing: The Offeror's price proposal will be evaluated for unbalanced pricing as defined in FAR 15.404-1(g). An offer may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government (see FAR 15.404-1(g)(1) through FAR 15.404-1(g)(3)).

Errors: The Offeror's Price proposal will be reviewed for errors. The Offeror may be given an opportunity to clarify certain aspects of their proposal at the sole discretion of the Contracting Officer.

Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

Prices shall be provided separately from the Technical Volume of the proposal.

Relative Importance of Factors:
Factors 1 through 3 are approximately equal. The non-price factors when combined are significantly more important than Factor 4 - Price.

4.1 EVALUATION APPROACH

4.1.1 Adequacy of Response

Offeror proposals be evaluated to determine whether the offeror's
methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in the RFP. The proposal will be evaluated to determine the extent to which each requirement has been addressed in the proposal in accordance with the proposal submission section of the RFP.

4.1.2 Feasibility of Approach

The proposal will be evaluated to determine the extent to which the proposed approach is workable and the end results achievable. The proposal will be evaluated to determine the extent to which successful performance is contingent upon proven methodologies and techniques. The proposal will be evaluated to determine the extent to which the offeror is expected to be able to successfully complete future task orders as required by the mission. Technical Factors (Factors 1 and 2).

Proposals will be evaluated to determine the extent to which the proposed approach is workable and the end results achievable. The proposal will be evaluated to determine the extent to which

successful performance is contingent upon proven methodologies and techniques. The proposal will be evaluated to determine the extent to which the Offeror is expected to be able to successfully complete the requirements specified in the PWS.

4.2 The Technical Factors Rating Scheme

The Technical Factors Rating Scheme, excerpted below, focuses on consideration of risk in conjunction with the strengths, significant strengths, weaknesses, significant weaknesses, uncertainties, and deficiencies in determining technical ratings of the offeror's proposal. The color rating depicts how well the offeror's proposal meets the technical factors' requirements. Factors 1 and 2 will be rated using the following combined technical/risk adjectival ratings

Combined Technical Risk/Ratings Factors 1 and 2	
Adjectival Rating	**Definition**
Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths, and risk of unsuccessful performance is very low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength, and risk of unsuccessful performance is low.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful contract performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation, and thus contains one or more deficiencies, and/or risk of unsuccessful performance is unacceptable. Proposal is not awardable.

4.3 The Past Performance Rating Scheme

The past performance factor considers each offeror's demonstrated recent and relevant record of performance in supplying services that meet the contract requirements. There are three (3) aspects to the past performance evaluation: recency, relevancy, and quality which will lead to the rating for this factor known as the "performance confidence assessment":

Past Performance – Factor 3	
Adjectival Rating	**Definition**
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available, or the

	offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Low Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on offeror's recent/relevant performance record, the Government has no expectation that the offeror will successfully perform the required effort.

4.4 Price

Price analysis of both the proposed labor rates and the price per each task in the PWS will be conducted using the techniques found in FAR 15.404-1. The Government will evaluate the proposed price of the contract against the competitive proposals received and against the IGE for award purposes. Evaluation of the proposed price schedule will not obligate the Government to exercise any option. The Government will also evaluate all Offeror's proposed price for unbalanced pricing.

Unbalanced Pricing: The Offeror's overall Cost/Price proposal will be evaluated for unbalanced pricing as defined in FAR 15.404-1(g). An offer may be rejected if the contracting officer determines that the lack of balance poses an unacceptable risk to the Government (see FAR 15.404-1(g)(1) through FAR 15.404-1(g)(3)).

Errors: The Offeror's Cost/Price proposal will be reviewed for errors. The Offeror may be given an opportunity to clarify certain aspects of their proposal at the sole discretion of the Contracting Officer.

Total Evaluated Price: In accordance with FAR 52.217-5, the Total Evaluated Price will include the price for the base tasks and all option tasks.

As the differences in technical ratings and relative advantages or disadvantages become less distinct, differences in prices between proposals are of increased importance in determining the most advantageous proposal. Conversely, as differences in prices become less distinct, differences in ratings and relative advantages and disadvantages between proposals are of increased importance to the determination. To receive consideration for award, an offeror must receive a rating of no less than acceptable for all technical factors and past performance confidence level of no less than neutral.

The Government reserves the right to accept other than the lowest price offer. The Government reserves the right to reject any and all proposals.

5.0 DISCUSSIONS

The Government intends to make awards without discussions in accordance with FAR 52.215-1. For this reason, the offeror's proposal must be complete and contain their most favorable terms.

The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. The proposal shall address and contain the information listed in Section L of the Solicitation. The information will be used by the Source Selection Evaluation Board (SSEB) to evaluate and rate each proposal.

If discussions are determined necessary, the Contracting Officer will include only those firms deemed to be the most highly rated with a reasonable chance for award. In certain circumstances, the Government may limit offers in the competitive range to the greatest number that will permit an efficient competition among the most highly rated offers. The Government may exclude an offer if it is so deficient as to require extensive discussions and major revisions such as to allow an Offeror an unfair advantage over those having competitive offers.

Upon conclusion of discussions, those Offerors still within the competitive range may be afforded an opportunity to submit their final revised proposal.

Discussion Scheduling: If discussions are conducted, the Contracting Officer will schedule the discussion sessions, and each offeror will be notified of the time and place prior to their discussion session. The discussion sessions will take place in a virtual setting.

6.0 DEFINITIONS

Clarifications - Means limited exchanges, between the Government and Offerors that may occur when award without discussions is contemplated. An Offeror may be given the opportunity to clarify certain aspects of the proposals (e.g., the relevance of an Offeror's past performance information/ adverse past performance information to which the Offeror has not previously had an opportunity to respond) or to resolve minor or clerical errors. Clarification does not give the Offeror an opportunity to revise or modify its proposal, except to the extent that corrections of apparent clerical mistakes result in a revision. Clarifications do not require discussions or submission of additional proposal information.

Communications - Exchanges, between the Government and Offerors, after receipt of proposals, leading to establishment of the competitive range.

Competitive Range - See FAR 15.306(c) Exchange with Offerors after receipt of proposal, competitive range.

Deficiency - A material failure of a proposal to meet a Government requirement or combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. Refer to FAR 15.001. A deficiency will preclude award action to that Offeror.

Evaluation Notice (EN) - The Contracting Officer's written notification to the Offeror for purposes of clarifications, communications, or in support of discussions.

Major Subcontractor - A subcontractor who performs 15% of more of the work.

Requirements Documents - All aspects of the solicitation that convey the needs of the Government to Offerors, including the PWS, and any technical requirement documents (as applicable).

Source Selection Authority (SSA) - The official designated to make the source selection decision. The Contracting Officer is the SSA for this solicitation.

Source Selection Evaluation Board (SSEB) - A group of Government and, if needed, approved non-Government personnel, representing the various functional disciplines relevant to the acquisition.

Strength - Any aspect of a proposal that, when judged against a stated evaluation criterion, has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.
Significant Strength – Any aspect of an Offeror's proposal that has appreciable merit or appreciably exceeds specified performance or capability requirements in a way that will be appreciable advantageous to the Government during contract performance.

Significant Weakness - A flaw that appreciably increases the risk of unsuccessful contract performance. Failure by an Offeror to rectify multiple significant weaknesses deemed essential will preclude award action to that Offeror (See FAR 15.001)

Subjective Trade-off – A source selection process used when it may be in the best interest of the Government to consider award to other than the lowest priced Offeror or other than the highest technically rated Offeror but is not possible to place a quantifiable value on proposed performance or capabilities above threshold (minimum) requirements.

Weakness - A flaw in the proposal that increases the risk of unsuccessful contract performance.

7.0 ATTACHMENTS

Performance Work Statement
Past Performance Questionnaire